

# STATE OF NEW YORK

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6388--A

2025-2026 Regular Sessions

## IN ASSEMBLY

March 4, 2025

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Introduced by M. of A. HYNDMAN -- read once and referred to the Committee on Governmental Operations -- recommitted to the Committee on Governmental Operations in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to the establishment of local comprehensive emergency management plans

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 5 and paragraph b of subdivision 7 of section  
2 23 of the executive law, subdivision 5 as amended by chapter 385 of the  
3 laws of 2017, paragraph b of subdivision 7 as amended by section 4 of  
4 part B of chapter 56 of the laws of 2010, subparagraph 13 of paragraph b  
5 of subdivision 7 as amended by chapter 724 of the laws of 2022, are  
6 amended to read as follows:

7 5. In preparing such plans, cooperation, advice and assistance shall  
8 be sought from local government officials, regional and local planning  
9 agencies, police agencies, fire departments and fire companies, local  
10 emergency management agencies, commercial and volunteer ambulance  
11 services, health and social services officials, community action agen-  
12 cies, the chief administrator of the courts, organizations for the  
13 elderly and the handicapped, agencies and organizations that provide  
14 home health care services, agencies and organizations that provide  
15 hospice services, local and municipal animal shelters, any duly incorpo-  
16 rated society for the prevention of cruelty to animals, veterinary  
17 services, other interested groups and the general public. Such advice  
18 and assistance may be obtained through public hearings held on public  
19 notice, or through other appropriate and practical methods, through  
20 which such aforementioned groups may offer their input for consideration  
21 on issues that support the effective preparation and execution of the  
22 plan. In addition, in the case of home care and hospice, such input may

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

LBD02780-04-6

1 address procedures by which such providers may be granted essential  
2 access to care for such patients during an emergency.

3 b. Disaster response. Plans to coordinate the use of resources and  
4 manpower for service during and after disasters and to deliver services  
5 to aid citizens and reduce human suffering resulting from a disaster  
6 shall include, but not be limited to:

7 (1) coordination of resources, manpower and services, using recognized  
8 practices in incident management, utilizing existing organizations and  
9 lines of authority and centralized direction of requests for assistance;

10 (2) the location, procurement, construction, processing, transporta-  
11 tion, storing, maintenance, renovation, distribution, disposal or use of  
12 materials, including those donated, and facilities and services which  
13 may be required in time of disaster;

14 (3) a system for warning populations who are or may be endangered;

15 (4) arrangements for activating municipal and volunteer forces,  
16 through normal chains of command so far as possible, and for continued  
17 communication and reporting;

18 (5) a specific plan for rapid and efficient communication and for the  
19 integration of local communication facilities during a disaster includ-  
20 ing the assignment of responsibilities and the establishment of communi-  
21 cation priorities and liaison with municipal, private, state and federal  
22 communication facilities;

23 (6) (i) a plan for the coordination of evacuation procedures including  
24 the establishment of temporary housing and other necessary facilities;  
25 and

26 (ii) such plan shall include the identification of temporary housing  
27 and other necessary facilities designated as animal-friendly;

28 (7) criteria for establishing priorities with respect to the restora-  
29 tion of vital services and debris removal;

30 (8) plans for the continued effective operation of the civil and crim-  
31 inal justice systems;

32 (9) provisions for training local government personnel and volunteers  
33 in disaster response operations;

34 (10) providing information to the public which shall:

35 (i) consider the communication accommodation needs of persons with  
36 vision or hearing impairments; and

37 (ii) include information on which temporary housing and other neces-  
38 sary facilities are designated as animal-friendly;

39 (11) care for the injured and needy and identification and disposition  
40 of the dead;

41 (12) utilization and coordination of programs to assist victims of  
42 disasters, with particular attention to the needs of the poor, the  
43 elderly, individuals with disabilities and other groups which may be  
44 especially affected;

45 (13) control of ingress and egress to and from a disaster area,  
46 including but not limited to, exempting from travel bans those essential  
47 private and public personnel, as determined by the commission, who are  
48 summoned by their employers to assist in emergency services, such as  
49 utility and other workers who need to reach declared emergency areas in  
50 order to perform tasks related to the restoration and/or maintenance of  
51 energy and communications infrastructure;

52 (14) arrangements to administer state and federal disaster assistance;

53 (15) procedures under which the county, city, town, village or other  
54 political subdivision and emergency organization personnel and resources  
55 will be used in the event of a disaster;

1 (16) a system for obtaining and coordinating disaster information  
2 including the centralized assessment of local disaster effects and  
3 resultant needs;

4 (17) continued operation of governments of political subdivisions;  
5 [~~and~~]

6 (18) utilization and coordination of programs to assist individuals  
7 with household pets and service animals following a disaster, with  
8 particular attention to means of evacuation, shelter and transportation  
9 options[~~-~~]; and

10 (19) establishing partnerships with local and municipal animal shel-  
11 ters, a society for the prevention of cruelty to animals and veterinary  
12 services to assist in responding to emergencies involving animals.

13 § 2. This act shall take effect on the ninetieth day after it shall  
14 have become a law.